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CASE COMMENT

ASHWANI CHAWLA V FLIPKART INTERNET PRIVATE LTD: FORMAL RECOGNITION OF DARK PATTERN PREVENTION AND REGULATION GUIDELINES

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Abstract: In this case comment, the authors analyse the decision of the State Consumer Disputes Redressal Commission, Chandigarh in the matter of Ashwani Chawla v Flipkart Internet Pvt Ltd and Others. This case involves multiple issues related to traditional consumer protection law, such as the jurisdiction of the commission, defect in goods, deficiency in service, unfair contract, and unfair trade practices. More importantly, this decision is one of the first Indian consumer law judgments to explicitly apply the Guidelines for Prevention and Regulation of Dark Patterns 2023. In addition, it also discusses the joint and several liability of the online platform intermediaries for actions of the traders allowed to operate on such platforms. Apart from the present judgment, the case comment also discusses similar judgments like *Jatin Bansal v Amazon Reseller Services Pvt Ltd and Others*, and the implications of the judgment in the context of Indian consumer law jurisprudence applied in the e-commerce sector.

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I. INTRODUCTION

'*Profit is sweet, even if it comes from deception.*' – Sophocles

The consumer-trader relationship has often been fraught with such deception from the very inception of commerce. The digitisation of the marketplace has merely brought in new dimensions of deception, of which 'dark patterns' is a rather diabolical example. The term signifies deceptive user interface design practices meant to manipulate consumer behaviour by the e-commerce platforms. The Indian consumer law framework is not oblivious of such practices and their potential to cause consumer harm. Back in 2023, the Central Consumer Protection Authority (CCPA) had, in exercise of its powers conferred under Section 18 of the Consumer Protection Act 2019 (CPA), notified the Guidelines for Prevention and Regulation of Dark Patterns 2023 (2023 Guidelines). The decision delivered by the State Consumer Disputes Redressal Commission (SCDRC), Chandigarh, on 20 February 2024, in the matter of *Ashwani Chawla v Flipkart Internet Pvt Ltd and Others* (Consumer Complaint No. CC/113/2023) assumes considerable significance in this context. It is one of the first judgments in Indian consumer law jurisprudence to explicitly apply the 2023 Guidelines. The manner in which these guidelines formalise the definition of dark patterns; seek to regulate not only advertisers and sellers, but also all platforms that systematically offer any good/service in India; and provide a detailed explanation of specified dark patterns and practices related thereto is unprecedented in the Indian consumer jurisprudence. Therefore, it will be highly useful for the consumer courts to have recourse to the 2023 Guidelines in matters involving similar questionable trade and advertising practices of digital platforms, particularly given the lack of awareness and guidance of such practices among the judiciary, consumers, and traders and advertisers. This is the main reason why the consumer court's formal application of the 2023 Guidelines in this case assumes particular significance. Alongside this, the judgment also addressed multiple traditional consumer protection concepts like unfair contracts, defect in goods, deficiency in services, unfair trade practices, and the jurisdiction of the SCDRC.

II. FACTS OF THE CASE

The facts of the case seem straightforward, yet they reveal many layers of consumer harm. The complainant, Ashwani Chawla, had bought a new mobile OnePlus handset through Flipkart, one of India's leading e-commerce

marketplace platforms. Despite this being a single transaction, two separate invoices were raised, one for the handset (₹40,941) and another referred to as 'offer handling fee' (₹49). Within a few weeks, the handset began to malfunction. At the brand's exclusive service centre, the consumer learnt that the handset had been activated prior to his purchase. The service centre, without accepting responsibility, relegated the matter to the manufacturer, the seller, and the intermediary Flipkart. They too did not provide any resolution, nor refund the money paid. As he had to buy a new phone at his own expense, he filed a consumer complaint under Section 47(1)(a)(ii) of CPA[1] before the SCDRC, Chandigarh.

III. ISSUES ADDRESSED IN THE CASE

The first issue concerns the validity of SCDRC's jurisdiction to hear this complaint. Section 47(1)(a)(ii) confers the necessary jurisdictional power to try disputes involving 'unfair contracts' on the SCDRC. Such contracts are those causing significant changes in the rights of the consumer, by way of the manufacturer/trader/service provider imposing *inter alia* unreasonable charges, obligation, or conditions that put the consumer at a disadvantageous position.[2] The complainant argued that so long as the value of the good/service that forms the contractual subject-matter was within ₹10 crores, the SCDRC could try such disputes; therefore, this dispute ought to be within its ambit, even though the harm caused to the consumer owing to the allegedly unfair contract in this case went far beyond mere monetary value.

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[1] This provision allows the SCDRC to entertain complaints against unfair contracts. It is interesting to note that the complainant preferred to file the complaint on this ground and not on the ground of the product being defective or services promised being deficient. The link between this choice and the pecuniary jurisdiction associated with it has been explained subsequently in the following part of this comment.

[2] See Section 2(46) of the Consumer Protection Act 2019, which defines unfair contracts as those:

(i) requiring manifestly excessive security deposits for performance of contractual obligations;
(ii) imposing penalties for breach disproportionate to the loss caused by such breach;
(iii) refusing to accept early repayment of debts;
(iv) entitling a party to unilaterally terminate contracts without reasonable cause;
(v) permitting assignment of contracts to the detriment of consumers without their consent; and
(vi) imposing unreasonable charges, obligations, or conditions that put consumers at disadvantage.

This discussion about jurisdiction reveals two important matters. First, it brings to the fore the concept of 'unfair contract' that had been introduced in the Indian consumer law jurisprudence vide CPA, drawing inspiration from international trends in consumer protection, as a distinctive ground of complaint different from defective goods and deficient services. The systematic disadvantage caused to the consumer owing to the unconscionable contractual terms imposed by the traders gets its due recognition in this form. In course of this discussion, the SCDRC comprehensively analysed the statutory definition of unfair contract as per Section 2(46) of the CPA and the non-exhaustive list of examples of such contractual terms as provided in the section.

Second, the judgment also highlighted that while the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules 2021 did bring the SCDRC's pecuniary jurisdiction to a 2-crore threshold down from the erstwhile 10 crores, such reduction is not applicable to matters involving unfair contracts. This is particularly important from the perspective of the consumer who would like to file a similar complaint before the SCDRC—as per the amendment introduced by the 2021 Rules, the SCDRC can only entertain matters involving defective goods or deficient service where the value of said good/service is between ₹50 lakh and ₹2 crore according to Section 47(1)(a)(i) of the CPA; however, the order acknowledged the fact that in matters where there exists a contract between the consumer and the trader, and the terms of the contract contain unfair practices, then the consumer need not concern themselves with the aforesaid pecuniary limitation even if the contractual value does not reach ₹50 lakhs. If they choose to file the complaint on the unfair contract ground instead under Section 47(1)(a)(ii), then the SCDRC can still entertain the same, since the 2021 Rules never amended that section, which still prescribes an upper cap of ₹10 crore and no lower cap for the contractual value. This can have an additional benefit of the SCDRC being able to hold that the consumer harm caused by the unfair contract goes beyond even ₹2 crore despite the original contractual value having been less than ₹50 lakhs to begin with. Especially in case of emerging technology-based practices like dark patterns and the systematic application of such practices by digital platforms, having this additional protective cushion may make a considerable difference for consumer rights.

While applying the concept of unfair contracts to the present case, the SCDRC found at least two instances of the respondents' conduct to be in direct statutory violation, which forms the second issue in this case. It held that the additional offer handling fees (₹49) clearly constituted an unreasonable double charge and put the complainant at a disadvantage, especially when the main invoice charged ₹139 towards shipping and handling. This practice of the respondents represents the category of unfair contract as envisaged in Section 2(46)(vi) of the CPA.[3] The complainant contended that the sale of a handset—that was neither new nor free of defect—as a purportedly brand-new product rendered such contract of sale unfair; further, the defendants' failure to replace the product or refund its price contributed to the unfairness of the original contract. Judicial acknowledgment of this argument's validity allows consumers to adopt a similar strategy if a complaint for defective good/deficient service might not be the best possible route to secure a suitable remedy. Coupled with the aforesaid discussion on jurisdiction, this further contributes to the expanding nature of consumer rights. While contractual misrepresentation in itself has been previously recognised as being against consumer rights, this case specifically highlights that misrepresentation of the core characteristic of a product vitiates consumer consent altogether—this may be useful to consider in cases where a good projected as new is not so when it reaches the consumer, regardless of whether the supplier or intermediary displays prior awareness or intent.

The third issue in the case involves a discussion of the concept of deficiency in service and unfair trade practices, with the SCDRC considering the two as complementary violations. The repeated and consistent failure of both Flipkart and the manufacturer to promptly redress the complainant's legitimate grievance was held to comprise deficiency in service. On the other hand, the manner in which the respondents conducted themselves, first selling a defective and used product under the guise of a new product, and then refusing to address the complainant's grievance, also amounted to unfair trade practice as per Section 2(47) of the CPA. In particular, the SCDRC's observation in this regard is significant, as it highlights the perception of unfair trade practice by the consumer forum in India as not merely restricted to misdescription, but extended to the overall trader conduct to the extent that it demonstrates indifference to consumer welfare.

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[3] This provision considers as unfair any contractual term that imposes any unreasonable charge, obligation, or condition on the consumer to their disadvantage.

The fourth and perhaps the most interesting issue in this case is the manner in which the SCDRC explicitly recognised and applied the 2023 Guidelines, in particular the definition of dark patterns as provided in Section 2(1)(e).[4] According to the SCDRC, the respondents had in this case engaged in dark patterns practice when they had issued two separate bills for a single transaction and marketed the product as brand new while deliberately selling a used product. In particular, the online advertisements and assurances meant to attract consumer interest were criticised by the SCDRC, given that the respondents did not take any step to fulfil their responsibility that accompanied such assurances, nor did they seek to replace the product or refund the money paid by the complainant. The online 'double-billing' in this case was considered as an attempt on the respondents' part at interface manipulation designed to hide from the consumer the true cost and nature of charges.

One has to understand the reality that a large number of consumers using these digital platforms may not be sufficiently digitally aware or proficient to cross-check each component of the invoices raised during an online order. In addition, these full-itemised invoices are seldom fully generated as part of the transaction itself (part of interface manipulation) but are often sent to the consumer vide email or through links hidden deep in the consumer user-profile maintained by the platform. Rarely does a consumer reconcile the items mentioned in such invoice in full, content in the assumption that the cumulative payment made by them represents lawful product price and fees charged by the platform. It is such consumer behaviour and trust that the platforms intend to exploit in a systematic manner and not merely as isolated incidents—therein lies the additional significance of bringing such action within the ambit of regulation as the 2023 Guidelines and this order have collectively sought to do. While the double billing practice qualifies as 'drip pricing',[5] the practice of selling a used product as brand-new amounts

[4] Section 2(1)(e) of The Guidelines for Prevention and Regulation of Dark Patterns 2023 defines dark patterns as 'any practices or deceptive design pattern using user interface or user experience interactions on any platform that is designed to mislead or trick users to do something they originally did not intend or want to do, by subverting or impairing the consumer autonomy, decision making or choice, amounting to misleading advertisement or unfair trade practice or violation of consumer rights'.

[5] This means not disclosing the final, true cost of the product upfront, thereby causing the consumer to end up paying more than originally intended.

to 'bait-and-switch'.[6] Such practices in fact squarely belong to the category of dark commercial patterns as discussed by the Organisation for Economic Cooperation and Development (OECD), which highlights examples like 'hidden information' and 'interface interference' as mechanisms through which online platforms seek to exploit consumers' cognitive bias and information asymmetries.[7] The OECD standard and typology have indeed been echoed to a great extent in the relatively recent 2023 Guidelines—they share a similar foundational definition of dark patterns, link such patterns to consumer detriment as unfair trade practice (causing the consumer to spend more time/money, or reveal more personal data, than intended), and target common practices like generating false urgency, disguised advertising, drip pricing, basket-sneaking, difficult-to-cancel subscriptions, etc. Given such alignment, judicial recognition of the 2023 Guidelines is a positive indicator of Indian consumer jurisprudence maturing to match globally recognised principles and standards. This judicial approach is noteworthy because of the recognition that dark patterns may encompass a broader range of practices beyond mere interface design choices, including deceptive marketing practices and misrepresentation. The application of the 2023 Guidelines in the judgment is also indicative of judicial attempts to consider progressive alignment of consumer protection jurisprudence in India with technological realities and the trade practices made possible by the same.

The fifth and final issue of note that the SCDRC addressed in the course of this judgment is the nature of Flipkart's liability. The latter claimed that as it was merely an online intermediary and platform facilitator and not the actual manufacturer or seller, it ought not to be held liable for any defect in product or deficiency of service and that such liability related to product quality or specification belongs entirely to the manufacturer or the seller. However, the SCDRC did not agree with this contention. Instead, it held that as a reputed online shopping platform, Flipkart was responsible for the fulfilment of the obligation flowing from the agreement that arose when the complainant had accepted (by placing an order) the offer made by Flipkart on its website. Had the order been cancelled before it could be confirmed, then other factors

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[6] The bait-and-switch may be further accentuated by advertising the product as brand new and attractive from a consumer perspective.

[7] See OECD Committee on Consumer Policy, Dark Commercial Patterns, OECD Digital Economy Papers No. 336, OECD Publishing (2022) for detailed discussion on typology including nagging, obstruction, sneaking, bait-and-switch, interface interference, forced action, and trick questions.

could have been at play, such as the possibility of the intermediary's liability towards the consumer having come to a premature end with the termination of the contract, as acknowledged by the SCDRC. Hence Flipkart could not escape its responsibility after it had allowed a third-party seller to operate on its platform. So, in the opinion of the SCDRC, Flipkart, the manufacturer, and the seller shared liability. Such reasoning by the SCDRC makes it clear that the platforms, especially those that tend to leverage their reputation to attract consumer trust, cannot avoid accountability for advertisement and trade practices of the sellers allowed to use the platform's resources. In addition, the interface manipulation for 'double billing' is also manipulative behaviour that the platform cannot entirely distance itself from.

Such judicial reasoning represents an important development in Indian consumer law jurisprudence as appliable to the e-commerce sector. While the liability of marketplace intermediaries still remains a contested issue,[8] said judicial approach recognises that marketplace platforms, owing to their direct contractual relationship with consumers and their direct control over the platform's interface and transaction mechanisms, ought to bear overall responsibility for ensuring that traders operating on their platform do not engage in unfair practices. The platform's role in facilitating the transaction, its presentation of products, billing mechanisms, and customer service systems constitute part of the service provided by the platform to the consumer. Hence, any shortcoming in these matters causing consumer harm might in turn lead to a judicial finding of deficiency in service offered by the platform. This inference of a direct contractual relationship between the consumer and the platform can be considered a significant development in e-commerce and consumer laws, especially given that the original product is not being sold by the platform itself—yet the platform's role is an integral one in facilitating the transaction, and it is undeniable that a large number of consumers extend their trust on the platform to the seller on account of the association between the two.

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[8] See, for instance, the case of *Flipkart Internet Private Limited v State of UP* [2022] SCC Online All 706, whereupon the court absolved the platform of liability of a laptop having been sold on the platform with a processor from a different brand than advertised. The court had observed that so long as the intermediary adheres to the requirements of Section 79 of the Information Technology Act 2000, it cannot be held liable for any third-party information or communication link made available or posted by it.

IV. RELIEF PROVIDED IN THE CASE

The SCDRC proceeded to grant multiple remedies to the complainant, which make sense given the multiple layers of violations involved.

The respondents were directed to refund ₹40,941 (the invoice price of the handset) along with ₹49 (the offer handling charge from the second invoice) to the complainant, along with interest of 9 per cent per annum from the date of payment till the complainant's receipt of such refund. In addition, the complainant was also awarded ₹10,000 as compensation for deficiency in service and harassment caused to him, along with ₹10,000 as litigation expenses, both the amounts having to be paid by the respondents. Further, keeping in mind the deliberate and calculated nature of unfair practices that the respondents had engaged in, they were also directed to pay a penalty of ₹10,000 (distributed pro rata among the respondents), which was to be deposited in the Consumer Legal Aid Account maintained by the SCDRC within one month of receipt of the certified order, otherwise an additional interest payment at 12 per cent per annum would be triggered along with additional penalties.

The SCDRC also noted that the entire practice in display from the respondents' side, especially the bifurcated invoicing system, might not have been an isolated error, but rather a systematic and deliberate business ploy designed to hide transaction costs. Hence an injunctive relief was also provided in the form of a separate direction whereby the respondents were to immediately stop such double billing practice and refrain from engaging in such unfair contract and trade practice, including dark patterns of any kind. This observation in particular merits close attention, because the court hereby acknowledges that the nexus of the platform-seller/advertiser that caused such harm to the consumer is not an isolated occurrence or a solitary mistake; rather it is a systematic ploy that assumes the lack of consumer awareness would translate into rare instances of such practices being identified, let alone successfully challenged. The diabolical nature of said assumption and the consistent harm, both long-term and short-term, to consumer interest, merits such injunctive relief and apportionment of respondent liability, beyond mere monetary relief as sought by the complainant in this case. In the broader consumer interest, this order therefore assumes further significance and precedential value.

V. FURTHER ANALYSIS OF THE ORDER

This decision, while significant for the reasons discussed above, is not the only one of its kind when it comes to addressing dark patterns in the context of consumer protection law in India. Contemporary decisions also exist, including those decided by SCDRC, such as *Jatin Bansal v Amazon Reseller Services Pvt Ltd and Others* (Complaint No. 71 of 2023, decided on 12 March 2024). In this case, the complainant had bought a pair of socks, marketed and advertised as 'Marc Jacobs' brand, through Amazon's e-commerce platform for ₹279.30 (after a significant discount). However, upon delivery, he found that the socks were manufactured by VK Knitting Industries and branded as 'marc', not the luxury brand as advertised. There are certain obvious similarities between these two cases, since both involve *inter alia* deception by marketplace platforms in product description and representation, both deal with the question of liability of marketplace intermediaries, and both involve claims of unfair contracts, deficiency in service, and unfair trade practices. Having said that, there are critical differences too. While Chawla's complaint involved the sale of a used product misrepresented as brand-new, coupled with a double billing practice,[9] Jatin Bansal's matter involved a bait-and-switch tactic, where an entirely different brand of product is substituted for the advertised brand, coupled with the platform's failure to honour even the letter of its own return/refund policy. In the second case, the SCDRC proceeded to have a detailed discussion about dark patterns. Amazon's continued display of the product sold as 'Marc Jacobs', despite receiving multiple emails from the manufacturer requesting correction to show the actual brand, constitutes deliberate engagement in a dark patterns practice, something that the first judgment also hinted at. Remarkably, the *Jatin Bansal* judgment noted that even at the time of writing the order, Amazon's website still displayed the socks under the misleading brand name, in a clear demonstration of the persistent and systematic nature of the practice. This

[9] This system tends to exploit several dimensions of consumer vulnerability and information asymmetry by way of cognitive overload on the consumers when they face numerous pieces of information and multiple screens during checkout time, by leveraging consumer trust in a leading platform's reputation, slipping in the smaller invoice while taking advantage of the shift in consumer attention after the main transaction is complete, and lack of industry standards leading to the consumer being unable to decide whether 'offer handling fees' are common industry practices or unique to the platform. See Jamie Luguri and Lior Jacob Strahilevitz, 'Shining a Light on Dark Patterns' (2021) University of Chicago Public Law and Legal Theory Working Paper Series, No. 719.

further contributes to the concern expressed earlier in the comment by the authors, as well as by the court in *Ashwani Chawla* and *Jatin Bansal*, that such practices represent consistent, deliberate, and pernicious attempts at eroding consumer welfare, which merit the strictest of legal and judicial responses.

These two similar cases, decided around the same time and by the same SCDRC, contribute considerably to the changing trajectory in Indian consumer law jurisprudence related to the e-commerce sector. It seems a settled point of law now that the judiciary is unlikely to accept the narrow interpretation that marketplace platforms bear no responsibility for trader conduct on their platforms. On the contrary, the platforms can be held jointly and severally liable alongside sellers and manufacturers for unfair trade practices and unfair contracts. Moreover, both the decisions appear to recognise the diabolical nature of deceptive practices that are not isolated errors, but rather systematic practices deliberately designed to benefit the traders at the consumer's expense. Importantly, both cases employ the dark patterns framework to encompass not merely interface design elements but broader deceptive commercial practices, including misrepresentation, bait-and-switch tactics, and deliberate obfuscation of terms and conditions meant to adversely affect consumer's rights. The significantly higher compensation awarded in *Jatin Bansal* (₹2 lakh as compensation and ₹25 lakh as damages to be deposited in the Consumer Legal Aid Account) also goes to show that the judiciary is likely to adopt a graduated and escalated approach to remedies and penalties commensurate with the severity, audacity, and persistence of the violations.

VI. CONCLUSION

The *Ashwani Chawla* case is likely to be considered a landmark judgment in Indian consumer rights jurisprudence for multiple reasons. Apart from the singular nature of the case in terms of the issues discussed above, it also brings interface design practices explicitly within the ambit of unfair contracts, which is likely to have future significance. Further, it extends the definition of 'defect in goods' to encompass not merely malfunctioning goods, but also goods that have been previously used contrary to the consumer's reasonable expectations and the trader's explicit representations.

As stated earlier, the explicit invocation of the 2023 Guidelines in this case represents a significant jurisprudential development. Prior to the 2023

Guidelines and their explicit recognition and absolute prohibition of dark patterns-based practices,[10] the Indian consumers and judiciary could only rely upon general prohibitions on misleading advertisement, deficiency in service, and unfair trade practice to address manipulative platform behaviour.[11] By recognising dark patterns as a distinct category of pernicious trader behaviour that can in turn trigger multiple statutory violations such as unfair contract, deficiency in service, unfair trade practice and others, this case provides consumer protection law in India with a foundation for addressing the systematic manipulative practices employed by digital platforms. The shift in focus from individual transactions to systemic practices is also of considerable importance.[12] Instead of viewing the double billing or the misrepresentation of product condition as isolated errors, the dark patterns framework as put forward by the court recognises them as deliberate design choices that collectively and cumulatively manipulate consumer behaviour and, in turn, subvert consumer autonomy.[13] This systemic perspective is critical for addressing the sophisticated manipulative

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[10] Section 4, The Guidelines for Prevention and Regulation of Dark Patterns 2023.

[11] While in general, Sections 2(28) and 2(47) of CPA defines misleading advertisement and unfair trade practices, the Act further establishes the Central Consumer Protection Authority (vide Section 10) to regulate matters relating to consumer interest and *inter alia* such practices. The CCPA was clearly of the opinion that the dark pattern practices comprise technological usage and manipulation, with which the judiciary and enforcement agencies as well as the consumers are unlikely to be familiar, thereby rendering successful regulation of such practices using the broad umbrella provisions prohibiting misleading advertisements and unfair trade practices rather difficult. That is the reason why it deemed fit to introduce the 2023 Guidelines to begin with, so as to effectively regulate these specific practices.

[12] While individual instances may appear minor, yet when aggregated across millions of transactions, such practices tend to generate substantial profit for the platforms. Such aggregated consumer harm therefore justifies regulatory intervention at both the individual transaction level (through consumer complaint adjudication as in this case) and the systemic level (through regulatory guidelines such as the 2023 Guidelines and enforcement action). See MR Leiser, 'Dark Patterns: The Case for Regulatory Pluralism' (June 2020) <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3625637> (accessed 8 December 2025).

[13] For examples of similar dark patterns across e-commerce websites, see Arunesh Mathur et al., 'Dark Patterns at Scale: Findings from a Crawl of 11K Shopping Websites' (2019) 3 Proceedings of the ACM on Human-Computer Interaction 1 and Justin Gunawan et al., 'Identifying Dark Patterns in Web Design' (2022) 49 ACM Conference on Human Factors in Computing Systems.

techniques employed by large e-commerce platforms.[14] While the judgment did not specify the practice being examined as belonging to any specific category of dark patterns as recognised by existing literature,[15] one may consider the practices alluded to in this case as instances of 'sneaking' and 'interface interference', as well as 'bait-and-switch'.

Another important contribution of this case is the recognition of joint and several liability of marketplace intermediaries along with sellers and manufacturers in e-commerce (although this approach needs to consider the existing contractual relationship between the intermediary and the other parties involved, as well as whether the intermediary's responsibility can be truly non-delegable as suggested by the court). Compared to a strict liability regime where each actor bears responsibility only for their respective conduct, this approach may in fact be preferable to the Indian consumer. While the SCDRC did not specifically allude to the provisions of the Consumer Protection (E-Commerce) Rules 2020, which impose specific obligations on e-commerce entities and marketplace platforms, the order seems to be in alignment with the same.[16] It is also a positive sign that this judgment appears to indicate that the Indian legal framework regulating dark patterns is ready for alignment with sophisticated foreign regulatory jurisdictions like the European Union,[17] the United States,[18] or international bodies like the OECD.[19]

From a critical perspective, one may argue that the judgment could have been more explicit while laying down the scope and basis of the platform intermediary's liability, including the precise legal basis for such liability

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[14] See Sebastian Rieger and Caroline Sinders, *Dark Patterns: Regulating Digital Design* (May 2020) <https://www.interface-eu.org/storage/archive/files/dark.patterns.english.pdf> (accessed 8 December 2025).

[15] OECD Committee on Consumer Policy (n 7).

[16] See Rule 6, The Consumer Protection (E-Commerce) Rules 2020.

[17] One may refer to the EU Unfair Commercial Practices Directive (UCPD 2005/29/EC), the privacy by design mandate of the General Data Protection Regulation (Regulation EU 2016/679), and the Digital Service Act 2022.

[18] See Section 5 of the Federal Trade Commission Act 1914. For further information about the interface between dark patterns and legislations like the California Consumer Privacy Act and the California Privacy Rights Act, see Stephen King & Penelope Stephan, *Dark Patterns and the Law* (2021) 5 Georgetown Technology Review 251.

[19] OECD Committee on Consumer Policy (n 7).

(contractual, tortious, or statutory on the basis of the E-commerce Rules), whether the liability extends to all trader conduct on the platform or only those directly facilitated by the platform's interface and policies, and the limits of such liability through adequate disclaimers, information disclosure, or appropriate policies, and so on. When it comes to the double billing practice, the SCDRC did not examine in detail whether the separate charges could reflect distinct services, one for physically fulfilling and handling the order and another for handling any offer applied to the transaction, or whether the industry custom may dictate such practice in which case the consumer expectation may differ. Nor did the SCDRC explore the extent of the platform's duty to check a product's history before labelling it new.

Having said that, the authors readily accept that these technical nuances by no means undermine the SCDRC's conclusion, which appropriately prioritises consumer protection by interpreting any factual or legal ambiguity in favour of the consumer. However, future litigation might require more detailed analysis of these definitional and evidentiary questions.[20] Till then, the intermediaries would be best advised to verify the legitimacy of sellers operating on their platforms; to ensure that product descriptions accurately reflect the products being sold; to maintain effective grievance redressal systems that can promptly address consumer complaints regarding product quality and misrepresentation; and to ensure that billing mechanisms, checkout procedures, and other interface elements do not exploit consumer cognitive biases or information asymmetries.

[20] Jordyn Michaels, 'Pathways to the Light: Realistic Tactics to Address Dark Patterns' (2022) 49 Rutgers Computer and Technology Law Journal 176.